

		1281.2, subdivision (c), that subdivision cannot be applied to deny the enforcement of the arbitration clauses governed by the FAA. [Citation.]”.) Accordingly, the Court STAYS the action <i>only as to Defendant, Lyft, Inc.</i> pending completion of arbitration. 9 U.S.C.A. § 3. An <u>ADR Review Hearing is set for December 10, 2026 at 10:30 a.m. in Dept. C34.</u> Defendant Lyft to give notice.
4.	30-2025-01453654 400 Spectrum Holdings LLC vs. McSen Realty Corp.	1. Case Management Conference 2. Order to Show Cause re: Appointment of Referee All parties should be ready to discuss appointment of a discovery referee and apportionment of the costs.
5.	30-2025-01492538 Stradling Yocca Carlson & Rauth LLP cs. Enerra Corporation	1. Motion to Compel Further Responses to Special Interrogatories 2. Motion to Compel Production The Motion to Compel Supplemental Responses to Requests for Production and Special Interrogatories brought by the Plaintiff Stradling Yocca Carlson & Rauth LLP against Defendant Enerra Corporation is GRANTED. As a preliminary matter, both parties agree that this motion may be heard notwithstanding the stay pending arbitration entered on November 6, 2025. (ROA 95.) Code of Civil Procedure § 485.230 provides: Where a right to attach order has been issued by the court, a plaintiff may discover, through any means provided for by, and subject to the protections included in, Title 4 (commencing with Section 2016.010) of Part 4, the identity, location, and value of property in which the defendant has an interest. On September 2, 2025, this Court issued a right to attach order in favor of Plaintiff in the amount of \$108,277.50. (ROA 86.) On that same date, the Court also enjoined Defendant from spending, transferring, encumbering, hypothecating or otherwise diminishing the value-- other than payment to Stradling-- of any and all monies received by Enerra Corporation or its affiliates: (a) in connection with Chubb/Federal Insurance Company Policy No. 8261-9093, (b) from "the Conti Parties' insurance company" pursuant to the settlement agreement dated February 6, 2025; or (c) in connection with any other insurance payments related to Enerra Corp. v. Conti Group LLC, et al., No. 3:23-cv-00194-L until the completion of arbitration relating to the fee dispute between these parties (that is, the dispute herein and any dispute relating to the alleged contingency agreement). (<i>Ibid.</i>) Plaintiff now seeks further responses to special interrogatories Nos. 1-3 as well as the production of additional documents responsive to requests for production Nos. 1 and 2, for the purpose of learning the identity, location and value of the property in which Defendant has an interest. In opposition, Defendant submits the declaration of its President, Sergio Perez, who declares that “the funds received by Enerra from Chubb/Federal Insurance and from the Conti partes’

carrier had been deposited in Enerra's bank account at JP Morgan Chase, and those funds were used before the RTO issued to pay various obligations of Enerra's, including some funds that were paid to the Stradling law firm. As evidenced by the JP Morgan Chase bank statement produced to Stradling in discovery, the balance of that account as of September 30, 2025, was \$119,177.62. Enerra has frozen this account." (Perez Decl. ¶ 2.)

Defendant proposes that, in lieu of providing supplemental discovery responses, it will transfer from its account the amount of the RTO (\$108,277.50) to a trust account under this Court's supervision or to Plaintiff to hold in trust pending resolution of the Bar Association and JAMS arbitration proceedings. (Perez Decl. ¶ 3.) Plaintiff is not agreeable to this proposal.

The purpose of an attachment is to insure the payment of any judgment rendered in the main action. (*Loeb & Loeb v. Beverly Glen Music, Inc.* (1985) 166 Cal.App.3d 1110, 1118.) Toward that end, section 485.230 allows a plaintiff to discover the identity, location and value of property in which the defendant has an interest.

Defendant's proposal is not a sufficient substitute for the relief sought by Plaintiff. In issuing the September 2, 2025 Right to Attach Order and Temporary Protective Order, this Court noted that "Defendant admits that it owes Plaintiff \$108,277.50 (plus the amount relating to 10% contingency which will be determined in arbitration)." (ROA 86.) As further stated in the Order, the "10% contingency" refers to a contingency fee to be paid to Plaintiff based on any funds Enerra recovered through settlement or judgment. (*Ibid.*) This Court then issued the Right to Attach Order in the amount of \$108,277.50 along with the above-described injunctive relief.

The injunctive relief restraining Defendant from transferring the insurance funds is in addition to the right to attach order for \$108,277.50. Depositing insurance funds in a trust account does not obviate the need for Plaintiff to obtain discovery as to the identity, location and value of property that could satisfy the \$108,277.50 amount that is the subject of the right to attach order.

Thus far, Defendant has only provided general information in response to the discovery requests at issue. The interrogatories and requests for production are relevant, consistent with Section 485.230, and not preempted by the pending arbitration. While Defendant contends that its privacy interests in its financial information outweigh Plaintiff's need for discovery, the Court disagrees. To alleviate privacy concerns, Defendant may produce the information subject to a confidentiality protective order. To the extent that the parties are unable to stipulate to confidentiality protective order, the Court will entertain a request for the same on an ex parte basis.

Accordingly, Defendant is **ORDERED** to produce supplemental responses to Requests for Production Nos. 1 and 2 and Special Interrogatories Nos. 1 through 3 **within 30 days of this order.**

Plaintiff to give notice.

6.	30-2024-01424629 Diaz vs. Ngo	1. Motion-Other (Discharging Guardian Ad Litem) Plaintiff Jasehi Angel Diaz, Guardian Ad Litem for Landon Diaz’s Motion to Discharge Guardian Ad Litem is GRANTED. On October 7, 2024, the Hon. Layne Melzer issued an order appointing Jasehi Angel Diaz as Guardian Ad Litem for Landon Diaz, who was then a minor. The sole basis for appointment was Landon Diaz’ status as a minor. (ROA 11.) Jasehi Angel Diaz has now submitted evidence that Landon Diaz turned 18 years of age on October 26, 2024. Because Landon Diaz has reached the age of majority, there is no need for a guardian ad litem. Moving party to give notice.
7.	30-2025-01520541 Huawei Ma, Trustee of The Liu and Ma Family Trust vs. Li	1. Case Management Conference 2. Joinder 3. Joinder 4. Motion to Dismiss Specially Appearing Defendant, Wenhui Li a/k/a Wenhui Laura Li a/k/a Laura Li (“Li”), moves for an order dismissing or staying this action on the ground of forum non conveniens in favor of the Delaware Court of Chancery, which the forum the parties have designated as the exclusive forum for Plaintiff’s claims. Specially Appearing Defendant, BTinsight, a California corporation (named as DOE 1) joins in the motion to dismiss for forum non conveniens filed by Specially Appearing Defendant Wenhui Li a/k/a Wenhui Li a/k/a Laura Li for all of the reasons set forth in that motion. Specially Appearing Defendant, Help Undiagnosed Children Foundation joins in the motion to dismiss for forum non conveniens filed by Specially Appearing Defendant Wenhui Li a/k/a Wenhui Li a/k/a Laura Li for all of the reasons set forth in that motion. Li contends that Defendant, Breakthrough Genomics Inc. (“BTG”) is a company incorporated in Delaware and headquartered in Irvine, and that its Bylaws contains a mandatory and exclusive forum provision designating the Delaware Court of Chancery as the exclusive forum for litigating a shareholder derivative lawsuit like the instant action, and which directly applies to Plaintiff’s six causes of action for: (1) breach of fiduciary duty; (2) negligence; (3) aiding and abetting torts; (4) accounting; (5) constructive trust; and (6) unjust enrichment. Li asserts that these claims involve internal corporate affairs governed by Delaware law. Li asserts that because the forum selection clause is indisputably valid, mandatory, and applicable to Plaintiff’s claims, Plaintiff has a heavy burden to demonstrate that Delaware’s courts “would be unavailable or unable to accomplish substantial justice” and that Plaintiff cannot do so, or show that enforcement of the clause would contravene a strong public policy in California. Li additionally asserts that California law and public policy mandate that Plaintiff’s claims be decided under Delaware law based on the “internal affairs doctrine.” Li also asserts that Plaintiff’s claims do not implicate any “unwaivable rights” under California law. Li thus contends that the Court should dismiss this case on forum non conveniens grounds, or alternatively, stay this litigation. Plaintiff, Huawei Ma, as Trustee of The Liu and Ma Family Trust, derivatively on behalf of Breakthrough Genomics Inc. (“Plaintiff” or “Ma”) contends that Li failed to inform the